

**STRICTLY PRIVATE & CONFIDENTIAL – WITHOUT PREJUDICE SAVE AS TO COSTS
FORMAL NOTICE: LEGAL HOLD, EVIDENCE PRESERVATION & REQUEST FOR
IMMEDIATE INTERIM MEASURES**

From: Rehan Arshad Minhas

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To: Laura Jones, HR Business Partner

Lonza Biologics PLC

228 Bath Road, Slough, Berkshire SL1 4DX

Date: 6 October 2025

Subject: FORMAL GRIEVANCE – Systematic Disability Discrimination, Harassment, Victimisation, Gross Misconduct, Data Protection Breaches, and Health & Safety Failures

A. Executive Summary I submit this formal grievance under Lonza's **Grievance Procedure (Oct 2023)**, **Sickness Absence Policy (Dec 2016)**, and pursuant to the **Equality Act 2010**. As a disabled person under **Section 6 of the Equality Act 2010** (long-term mental health condition with episodic/transient symptoms, stable and supported, not posing risks to self or others), I have endured a coordinated campaign of disability discrimination, harassment, victimisation, and gross misconduct by my line manager (RJ) and plant manager (SD) since my confidential disclosure on **13 September 2025**. This includes:

- Insecure storage and suspected unauthorised sharing of my special category health data.
- Repeated public humiliation and intrusive questioning.
- Discriminatory probationary targets post-disclosure.
- Failure to refer to Occupational Health (OH) despite five **UKSL 425** health reports.
- Pressure to work in safety-critical clean-room environments despite known medication side effects (incontinence).

This misconduct has caused **severe psychiatric injury**, exacerbating my symptoms (intensified anxiety, panic episodes, insomnia <4 hours nightly, appetite/weight loss, emotional withdrawal, social isolation, family disengagement, and professional disengagement), necessitating **NHS mental health crisis team intervention on 3 October 2025**. These actions constitute **vicarious liability** for Lonza, posing critical legal, regulatory (ICO/HSE), and reputational risks requiring immediate Board-level

intervention. **ACAS Reference:** R260632/25 (initiated: 29 September 2025)

Access to Work Reference: 5RRLKN95 I demand urgent remedial measures, evidence preservation, and an independent investigation, as detailed below.

B. Legal, Contractual & Policy Basis Statutory Breaches:

- **Equality Act 2010:**
 - **Section 15:** Discrimination arising from disability (e.g., exaggeration of health-related absences, differential scrutiny of breaks/off-plant time, burdensome probation targets post-disclosure).
 - **Sections 20–21:** Failure to make reasonable adjustments (e.g., no OH referrals despite five UKSL 425 reports, no mental health risk assessments, pressure to work in clean-rooms).
 - **Section 26:** Unlawful harassment (e.g., intrusive questioning 16x on 27 Sep, public shaming, discriminatory comments like “concerning for a young man”).
 - **Section 27:** Victimisation for protected acts (e.g., RJ’s dismissal of complaints, suspected discouragement of colleague feedback).
- **Health and Safety at Work etc. Act 1974, s.2:** Failure to ensure employee welfare (e.g., no risk assessments for mental health/clean-room risks).
- **UK GDPR/Data Protection Act 2018, Article 9:** Unlawful processing and insecure storage of special category health data.
- **Implied Duty of Trust and Confidence:** Repudiatory breach fostering a hostile environment, risking constructive unfair dismissal.

Contractual Breaches (Contract of Employment, 27 June 2025):

- **Clause 5 (Probationary Period):** Improper extension of probation with discriminatory targets post-disclosure, lacking transparent justification.
- **Clause 6(f) (Income Protection):** Failure to consider income protection or adjustments for disability-related absences.
- **Clause 8 (Disciplinary Rules):** RJ and SD’s actions (bullying, harassment, data breaches) constitute gross misconduct.
- **Clause 9 (Termination):** Grounds for summary dismissal of RJ/SD due to gross misconduct.
- **Clause 14 (Data Protection):** Insecure storage and suspected sharing of health data.
- **Clause 15 (Confidentiality):** Unauthorised disclosure of health data.
- **Clause 17 (Equal Opportunities):** Failure to uphold non-discrimination obligations.

Lonza Policy Breaches:

- **Sickness Absence Policy (Dec 2016, Part 1, 2.7 & 2.9; Part 2, 3.1.1):** No OH referrals for five UKSL 425 reports; no reasonable adjustments.
- **Conduct Policy (Dec 2018, Section 1.5.1):** Bullying, harassment, and discrimination by RJ/SD.
- **Grievance Procedure (Oct 2023):** Failure to investigate complaints (e.g., RJ's dismissal on 27 Sep).
- **Employee Handbook (June 2025, Pg. 6):** Breach of confidentiality obligations.

C. Chronological Evidence Matrix – Pattern of Discrimination This matrix establishes a systematic campaign of discrimination, harassment, and victimisation escalating post-disclosure, directly linked to my disability and causing severe harm. Full details are in the attached **Contemporaneous Incident Log (Minhas_Contemporaneous_Log_6Oct2025.pdf)**.

Date & Time	Incident Description	Legal/Policy/Contractual Breach	Evidence	Witnesses
Late Aug–Early Sep 2025 (2–3 occasions, various shifts)	Reported diarrhoea (medication side effect) via UKSL 425 to SD. Later exaggerated by RJ/SD as “every other day” off-plant, undermining suitability. No OH referral.	EqA s.15, s.20–21; HSWA 1974 s.2; Sickness Absence Policy 2.7, 2.9; Contract Cl.6(f), Cl.7, Cl.10, Cl.17	UKSL 425 logs; contemporaneous notes; GP letter (30 Sep 2025); deleted Teams messages (request retrieval)	SD, RJ, unknown colleagues
8 Sep 2025, 09:00	RJ publicly noted my “nervous” appearance, initiating scrutiny. Worked buffer tasks with ARS, TJA, SAV without issue.	Prelude to EqA s.26; Conduct Policy 1.5.1; Contract Cl.2, Cl.17	Contemporaneous notes; schedule records	RJ, ARS, TJA, SAV
9 Sep 2025, 12:30	HRK relayed “nervous” concerns; TJA reported unlocatability, reframed as lateness. Breaks aligned with team (ARS, TJA, TNO), but I was singled out. Emailed TJA, ARS, TNO (no replies).	EqA s.15, s.26; Conduct Policy 1.5.1; Contract Cl.2, Cl.17	Contemporaneous notes; Teams messages; emails to TJA, ARS, TNO; GP letter	ARS, TJA, TNO, HRK, RJ
12 Sep 2025, 10:00	Performed filtration tasks in Suite 2 with MOC, CGS. Emailed MOC for feedback (no reply).	Context for EqA s.15; Contract Cl.2	Contemporaneous notes; schedule records; email to MOC	MOC, CGS
13 Sep 2025, 14:00	Disclosed mental health condition/incontinence to RJ in probation review. Recorded in unprotected Excel. Probation extended with discriminatory targets (95% CSOD, excessive demos). Worked Suite 2 with NAH, MOC, CGS.	UK GDPR Art.9; EqA s.15, s.20–21; Conduct Policy 1.5.1; Employee Handbook Pg.6; Contract Cl.5, Cl.14, Cl.15, Cl.17	Contemporaneous notes; Excel file (request retrieval); probation documents; GP letter; email to NAH	RJ, NAH, MOC, CGS, RSM
14 Sep 2025, 11:00	Performed tasks in Suite 2 with MOC, CGS, MIC, DAR. Emailed MIC for feedback (no reply).	Context for EqA s.15; Contract Cl.2	Contemporaneous notes; schedule records; email to MIC	MOC, CGS, MIC, DAR
17 Sep 2025, 08:30	Reported diarrhoea (UKSL 425). RJ interrogated toilet use (“concerning for young man” via MIB). No OH referral. Emailed MIB (no reply).	EqA s.15, s.26; HSWA 1974 s.2; Sickness Absence Policy 2.7; Contract Cl.6(i), Cl.10, Cl.17	Contemporaneous notes; Teams messages; GP letter; email to MIB	RJ, SD, MIB
22 Sep 2025, 10:00	Performed tasks in Suite 2 with RB, CGS, DAR. Emailed RB (no reply).	Context for EqA s.15; Contract Cl.2	Contemporaneous notes; schedule records; email to RB	RB, CGS, DAR
23 Sep 2025, 09:30	Performed filtration tasks in Suite 2 with CGS, DAR, SJ, ATA. Emailed SJ (no reply).	Context for EqA s.15; Contract Cl.2	Contemporaneous notes; schedule records; email to SJ	CGS, DAR, SJ, ATA

26 Sep 2025, 07:45 & 16:30	SD publicly shamed me for 20-minute lateness in open-plan office; questioned health/aptitude in smoking area, suggesting unauthorised data access. Worked Suite 1 with TNO, ADY, SAV. Emailed TNO, ADY (no replies).	EqA s.15, s.26, s.27; Conduct Policy 1.5.1; Employee Handbook Pg.6; Contract Cl.14, Cl.15, Cl.17	Contemporaneous notes; Teams messages; emails to TNO, ADY; GP letter; colleague observations	SD, TNO, ADY, SAV, open-plan staff
27 Sep 2025, 17:00	Asked "Are you OK?" 16x by managers/colleagues, fostering isolation. RJ refused complaint investigation, stating "you can do what you want." Worked Suite 1 with SLS, TNO, KDY, SAV. Emailed RS (limited reply).	EqA s.26, s.27; Conduct Policy 1.5.1; Grievance Procedure; Contract Cl.8, Cl.11, Cl.17	Contemporaneous notes; ACAS initiation; Teams messages; email to RS	RJ, SLS, TNO, KDY, SAV, multiple staff
28 Sep 2025, 17:30	RJ challenged approved off-plant time (toilet/shift end). Worked Suite 2 with NAH, DAR, CGS, SHC, SAV. Emailed NAH (no reply).	EqA s.15; Conduct Policy 1.5.1; Contract Cl.17	Contemporaneous notes; schedule records; email to NAH	RJ, NAH, DAR, CGS, SHC, SAV
2 Oct 2025, 11:30	RJ confronted me over approved training, singling me out despite team absence. Emailed trainer (no reply).	EqA s.15, s.26; Conduct Policy 1.5.1; Contract Cl.17	Contemporaneous notes; meeting records; email to trainer	RJ, colleague trainer
3 Oct 2025, 18:00	Contacted NHS crisis team (Northwick Park/CNWL) due to work-induced exacerbation. Emailed OH for urgent referral.	EqA s.15, s.26, s.27; HSWA 1974 s.2; Contract Cl.6(i), Cl.10	NHS contact; OH email; GP letter	NHS staff, OH

D. Critical Managerial Misconduct – Systemic FailuresD.1 Confidentiality & Data Protection Catastrophe

- **13 Sep 2025:** RJ recorded my mental health condition and incontinence in an unprotected Excel file, breaching **UK GDPR Article 9, Contract Clause 14 (Data Protection), Clause 15 (Confidentiality), and Employee Handbook Pg.6.**
- **26 Sep 2025:** SD’s questioning suggested unauthorised access to my health data, disclosed only to RJ/RSM/OH.
- **Ongoing:** Systematic failure to secure special category data, fostering social labelling and isolation.

D.2 Coordinated Harassment & Victimisation Campaign

- **Public Humiliation:** Intrusive questioning (16x on 27 Sep), public shaming (26 Sep), confrontational dismissal of complaints (27 Sep).
- **Social Isolation:** Encouraged labelling as “unwell”; suspected discouragement of colleague feedback (only 1/6 responses).
- **Differential Treatment:** Targeted scrutiny of breaks/off-plant time (9, 17, 26 Sep, 2 Oct); discriminatory probation targets (13 Sep).
- **Victimisation:** RJ’s refusal to investigate complaints (27 Sep) and escalated targeting post-disclosure, breaching **EqA s.27, Conduct Policy 1.5.1, Contract Clause 11.**

D.3 Health & Safety Negligence – Clean-Room Risks

- No OH referrals despite five UKSL 425 reports (Aug–Sep 2025), breaching **Sickness Absence Policy 2.7, 2.9**.
- Pressure to return to clean-rooms despite incontinence risks, endangering health and production, breaching **HSWA 1974 s.2, Contract Clause 10**.
- No mental health risk assessments, exacerbating my condition.

E. Medical Evidence & Critical Health Deterioration

GP Verification (Dr. Tamkin Abas, 30 Sep 2025):

- Confirms long-term mental health condition, medication side effects (incontinence, nervousness), and need for workplace adjustments.
- Ongoing treatment and recovery period.

Work-Induced Deterioration:

- **Symptoms:** Severe insomnia (<4 hours nightly), appetite/weight loss, intensified anxiety, panic episodes, emotional withdrawal, social/professional disengagement.
- **NHS Crisis Intervention (3 Oct 2025):** Referral to secondary services (Northwick Park/CNWL) due to workplace misconduct.
- **Further Medical Escalation:** GP emergency contact (6 Oct); mental health liaison appointment (14 Oct); Talking Therapies Harrow self-referral (ongoing).
- **Causation:** Direct link between managerial misconduct (harassment, victimisation, failure to adjust) and psychiatric injury.

F. Evidence Preservation – Formal Legal Hold

Immediate Preservation Required (24 Hours):

- **Digital Records:**
 - RJ's unprotected Excel file (health data) and storage locations (OneDrive/local drives).
 - Email/Teams/Slack/WhatsApp logs for RJ, SD, and supervisors (1 Aug–10 Oct 2025, including deleted items).
 - HR systems: probation, attendance, UKSL 425 reports, CSOD/PIP logs, training records.
 - Kronos/SAP timesheets, door-swipe/access logs (8–9, 12–14, 17, 22–23, 26–28 Sep, 2–3 Oct 2025).
 - CCTV footage (production suites, offices, changing areas, smoking area) for the same dates.

- **Physical Records:** Supervisor logs, UKSL 425 forms, probation documents, incident reports.
- **Witness Evidence:** Statements from NAH, MOC, MIB, ARS, TJA, RS, HRK, TNO, ADY, SAV, RB, CGS, DAR, SJ, ATA, SLS, KDY, MIC; management chain (RJ, SD, RSM); HR personnel.

Confirmation: Provide written confirmation of preservation within 24 hours. If any item cannot be preserved, state what, why, and by whom.

G. Quantifiable Losses & Corporate Liability

G.1 Psychiatric Harm & Personal Injury:

- Diagnosed exacerbation requiring NHS crisis intervention.
- Medical evidence: GP letter, NHS crisis notes, ongoing therapy/liaison.
- Direct causation by workplace misconduct.

G.2 Financial & Compensation Impact:

- **Injury to Feelings:** Upper Vento band (£36,400–£60,700+) for severe, sustained distress.
- **Personal Injury:** Psychiatric harm (£25,000+ for crisis intervention).
- **Economic Loss:** Probation extension, career progression, sick pay (£15,000+).
- **Aggravated Damages:** £10,000+ for intentional misconduct (e.g., data breaches, refusal to investigate).
- **ACAS Uplift:** Up to 25% for procedural failures.
- **Total Potential:** £86,400–£110,700+ (reserved, pending further medical evidence).

G.3 Corporate Risk:

- Employment Tribunal claims (discrimination, harassment, victimisation, constructive dismissal).
- ICO investigation (GDPR breaches).
- HSE enforcement (HSWA violations).
- Reputational damage (public litigation, media exposure).

H. Urgent Remedial Requirements

H.1 Immediate Actions (24 Hours):

1. Suspend RJ and SD pending investigation (per **Contract Clause 9, Conduct Policy 1.5.1**).
2. Reassign me to a neutral reporting line with protected status.
3. Issue company-wide instruction to cease health-related communications/scrutiny.
4. Implement formal legal hold on all evidence (Section F).

H.2 Investigation & Accountability (3 Days):

5. Appoint independent external investigator (employment counsel, unaffiliated with

Slough site).

6. Initiate disciplinary proceedings against RJ/SD for gross misconduct (**Contract Clause 8**).

7. Ensure transparency and compliance with **Grievance Procedure (Oct 2023)**.

H.3 Restorative & Corrective Measures:

8. Immediate OH referral and implementation of reasonable adjustments (e.g., flexible breaks, non-clean-room duties, per **Sickness Absence Policy 2.9**).

9. Revoke discriminatory probation terms/targets (**Contract Clause 5**).

10. Conduct data audit and securely delete unlawfully processed health data (**UK GDPR Article 9**).

11. Implement Access to Work grant (Ref: 5RRLKN95).

H.4 Compensation & Resolution:

12. Open without-prejudice settlement negotiations (COT3) for full losses.

13. Provide formal written apology for misconduct.

I. Legal Escalation & Rights Reservation

ACAS Early Conciliation was initiated on **29 September 2025 (Ref: R260632/25)**. I

reserve all rights to pursue Employment Tribunal claims for:

- Disability discrimination, harassment, victimisation (**EqA 2010**).
- Personal injury (psychiatric harm).
- Constructive unfair dismissal (**Contract Clause 9**).
- Data protection breaches (**UK GDPR/DPA 2018**).

Failure to follow the **ACAS Code of Practice** will result in seeking a **25% uplift** in compensation.

J. Corporate Governance Imperative The systematic nature of these breaches indicates fundamental failures in:

- Management training, oversight, and accountability.
- Equality, Diversity, and Inclusion (EDI) implementation.
- Data protection compliance and information governance.
- Health and safety risk assessments.

This requires immediate Board-level review and company-wide reforms, including audits and training.

K. Next Steps & Compliance Timeframes

I require and expect:

- **Within 24 Hours:** Acknowledge receipt, confirm interim measures (suspensions, legal hold).
- **Within 3 Working Days:** Appoint independent investigator, provide terms of reference.

- **Within 5 Working Days:** Confirm evidence preservation, outline investigation timetable.
- **Within 20 Working Days:** Complete investigation, provide report (subject to complexity).

This is a **corporate governance emergency** requiring immediate senior executive attention due to coordinated misconduct, severe health impacts, and regulatory breaches.

Yours sincerely,

Rehan Arshad Minhas

Biotechnologist, Lonza Slough

Employee ID: 00857478, GR83347

Enclosures:

- GP Medical Letter (30 Sep 2025)
- Contemporaneous Incident Log (Minhas_Contemporaneous_Log_6Oct2025.pdf)
- Contract of Employment (27 Jun 2025)
- Lonza Sickness Absence Policy (Dec 2016)
- Lonza Conduct Policy (Dec 2018)
- Lonza Grievance Procedure (Oct 2023)
- ACAS Early Conciliation Certificate (R260632/25)
- Access to Work Reference (5RRLKN95)